

every matter pertaining thereto."].) This inherent authority provides an additional basis for the Court to stay the action in light of the nature of the claims alleged against Annie, the cited provisions of the Family Code, and the undisputed existence of the dissolution proceedings between Annie and Evan in another court initiated at least a year or two before this civil action was filed.

D. Conclusion and Stay of Claims Against Annie

The general demurrers to the fourth, fifth, and sixth causes of action against Annie based on lack of subject matter jurisdiction under Code of Civil Procedure § 430.10(a) are **overruled**. Under the doctrine of exclusive concurrent jurisdiction, or alternatively, pursuant to the Court's inherent authority to stay the claims against Annie in the interests of justice, judicial efficiency, and avoidance of rulings that may interfere with the jurisdiction of the family court and the issues properly before that court in the dissolution proceeding, the action as to Annie and the claims alleged in the fourth, fifth, and sixth causes of action against her are hereby **stayed** pending (a) resolution of the dissolution proceeding between Plaintiff Evan and Annie in the Superior Court of California for the County of Nevada, or (b) further order of the Court.

Notwithstanding the stay of the claims against Annie, the Court will require Evan and Annie to apprise the Court periodically of the status of the dissolution proceeding and any impact events in that proceeding may have on the resumption of litigation of the stayed claims in this Court through appearance at the periodic case management/status conferences set in the case. The next case management conference in the case is scheduled for **8:30 a.m. on November 18, 2026**.

Given this ruling, and in light of the likelihood that events in the dissolution proceeding in the Nevada County Court may impact the claims made by Evan against Annie in the fourth through sixth causes of action, the Court does not reach any other grounds for the demurrers to the fourth through sixth causes of action.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC22-00422

CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC

***HEARING ON MOTION FOR DISCOVERY**

FILED BY: BRADSHAW, DANIEL

TENTATIVE RULING:

Before the Court is Plaintiff's Motion for a Protective Order Regarding Defendants' Demand for Second Medical Examination, filed August 13, 2026. Specifically, the Plaintiff seeks to restrict Defendants' ability to choose the physician of its choice for a second medical examination of the Plaintiff. The parties have met and conferred on this issue. (Declaration of David Livingston, filed August 18, 2026, "Livingston Decl." ¶ 14.) The Plaintiff's motion is **denied**.

Plaintiff's lawsuit seeks, among other things, damages for injuries to his left knee due to an incident occurring on March 8, 2021. Plaintiff filed his complaint for personal injury on May 4, 2022. Litigation ensued. Trial was set for October 13, 2026. Defendants retained Dr. Piers Barry, an orthopedist who

examined Plaintiff in 2023, as a damages expert and disclosed Dr. Barry to Plaintiff on **August 18, 2025**.

Plaintiff underwent total knee replacement on **February 23, 2026**. Plaintiff's counsel Gary Roth admitted to the court that he learned of his client's knee replacement sometime in March of 2026.

Plaintiff did not disclose the knee replacement procedure to Defendants. Plaintiff took Dr. Barry's deposition on **May 5, 2026**, and without disclosing the knee replacement to Defendants or to Dr. Barry. (Livingston Decl. ¶¶ 3-4 and Ex. B attached to Livingston Decl.)

Defendants learned of the knee replacement procedure on June 10, 2026. (Livingston Decl. ¶ 5) Two days later, at the parties' Issue Conference on June 12, 2026, Defendants moved for a continuance of the June 2026 trial date. The court set a new trial date of October 13, 2026 and ordered that Discovery would not be re-opened on issues of liability, but would be reopened on "damages related discovery stemming from Plaintiff's knee surgery in February of 2026."

The Plaintiff's motion to restrict Defendant's choice of expert for the second medical examination is without merit. Plaintiff argues that the previous expert, Dr. Barry, is qualified and assert that Defendants need to make a showing that Dr. Barry has a lack of qualification to conduct a further examination, that Dr. Barry is medically unqualified to examine Plaintiff's present condition, or that Dr. Barry's testimony was compromised because he was not told of Plaintiff's knee replacement surgery. Plaintiff assert that

"Defendants had their choice of examiner and they chose Dr. Barry," and that Defendants must cite to legal authority "that a repeat examination may proceed with a new orthopedist." Plaintiff's arguments lack supporting legal authority.

Because Plaintiff has put his physical condition at issue, he has waived his privacy rights as to that issue. Plaintiff's counsel objects that Defendants seek a "do-over" while their client "pays the price." This statement turns the facts upside down. Defendants have every right to know Plaintiff's post-incident medical procedures prior to designating their damages expert. Had Plaintiff not withheld information about Plaintiff's total knee replacement in February of 2026, the court finds it is almost certain that Defendants would not have designated a physician who has not performed a total knee replacement in years to be deposed in May of 2026. The court finds it near certain that Defendants would have designated an expert with current experience in that area. If Plaintiff is "paying a price," it is due to his counsel's non-disclosure of pertinent information.

The court finds good cause for the selection of Dr. Kevin Mikaelian as the examiner for the second medical examination: that Dr. Mikaelian has and continues to perform total knee replacement surgery, while Dr. Barry has not performed one in at least six years. The court finds this difference in experience satisfies the requirement described in *Shapira v. Superior Court* (1990) 224 Cal. App. 3d 1249, especially in a case in which Defendants might not have proceeded to designate Dr. Barry as their damages expert had they known that Plaintiff had undergone a total knee replacement. Defendant's expert may inquire into damages related issues related to Plaintiff's total left knee

replacement surgery, including not only his left knee but any other complaints he has had arising after his left knee replacement surgery, including issues relating to “impaired ait.”

Plaintiffs object that the location of the examination by Dr. Mikaelian – in Sacramento, CA, is more than 75 miles from Plaintiff’s residence in Corning CA. The parties seem to agree that the two locations are roughly 115 miles apart. (Opp. 6:5-11, 9:17-10:8, Livingston Decl., ¶ 11) Section 2032.320 of the Code of Civil Procedure provides,

e) If the place of the examination is more than 75 miles from the residence of the person to be examined, an order to submit to it shall be entered only if both of the following conditions are satisfied:

(1) The court determines that there is good cause for the travel involved.

(2) The order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination.

The Court finds good cause as required by CCP § 2032.320(e)(1) for the travel involved, given that this whole procedure of a second examination might not have been warranted had the Plaintiff’s attorney forthrightly disclosed his February 23, 2026 knee replacement in March of 2026, prior to the Dr. Barry deposition. In addition, there is good cause for the second examination by Dr. Mikaelian, as opposed to Dr. Barry. Finally, Plaintiff’s admission in its Reply, “Plaintiff is willing to travel beyond the statutory distance to permit *Dr. Barry* to conduct a limited updated examination,” (Reply at 4: 20-22, emphasis added) acknowledges that travel beyond the 75 mile radius is something within Plaintiff’s capabilities.

The second condition, advancement of reasonable expenses and costs for the examinee for travel to the place of examination, is satisfied by the Defendant’s offer to reimburse Plaintiff for his mileage at the current tax reimbursement of .76/mile. (Livingston Decl., ¶ 11, and Ex. G attached to the Livingston Decl.)

The Plaintiff’s motion is **denied**.

Plaintiff shall submit to a second medical examination on September 11, 2026 at 2:30 p.m. at the offices of Dr. Kevin Milaekian, which are located at 7248 South Land Park Drive, Suite 116, Sacramento, CA, 95831.

Defendants are ordered to present Plaintiff with reimbursement (in the form of a check) for travel costs to and from Corning, CA at the rate of .76/mile, or \$174.80 to attend the examination, upon completion of same.

Defendants shall direct Dr. Mikaelian to prepare a written report and they must timely provide it to Plaintiff’s counsel pursuant to CCP § 2032.610(2)(b).

Defendants are ordered serve Plaintiffs with Notice of Entry of this Order electronically by close of

business on September 8, 2026.

Courtroom Clerk's Session

19. 1:30 PM CASE NUMBER: MSC21-00582

CASE NAME: WHITE VS SUTTER DELTA MEDICAL CENTER

**ISSUE CONFERENCE ALL PARTIES SHALL APPEAR IN PERSON EXCEPT DR. WOO AND INSURANCE
REP B. RIETMAN WHO MAY APPEAR VIA ZOOM.**

FILED BY:

TENTATIVE RULING:

Parties to appear.